

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306424	TRAN vs FRIEL	MOTION TO ENFORCE SETTLEMENT

Tentative Ruling: This matter was noticed for September 29, 2026 at 8:30 a.m. in Dept. 3.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403066	DOE vs BEAUMONT UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL

Tentative Ruling:

Meet and Confer

As effective 1/1/26, CCP §2016.040 requires a meet-and-confer declaration to state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*, to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) Here, the record shows written correspondence (Baker Decl., ¶¶ 4, 11-14), but Plaintiffs do not dispute that counsel held no *in-person*, *telephone*, or *videoconference* meeting before filing the motion. Since Plaintiffs did not satisfy the present version of CCP § 2016.040, the court continues the hearing for counsel to make at least one attempt to reach defense counsel by phone. The hearing is continued to September 28, 2026 at 8:30 am in D-3. Plaintiff is to file a supplemental meet and confer declaration 5 court days in advance of the hearing. Defendant is advised that counsel's correspondence is not a judicial admission sufficing to remove an issue from dispute..

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407289	DG MARKHAM PROPERTY OWNER, L.P., vs SHIPJOY, LLC	MOTION TO COMPEL

Tentative Ruling:

This action arises from the parties' dispute regarding a commercial lease for property located at 212 W. Markham Street, Perris, California (the "Property"). On January 31, 2022, Plaintiff DG Markham Property Owner, L.P. ("Plaintiff") and

Defendant Shipjoy, LLC (“Tenant”) entered into a Lease Agreement (“Lease”) for the lease of the Property. (Compl. ¶ 8.) That same day, Plaintiff, Tenant, and Defendant Noor Group, LLC (“Guarantor”) entered into a companion Guaranty. (*Id.* at ¶ 9.) Non-Party Colliers International of Greater Los Angeles, Inc. (“Colliers”) acted as Plaintiff’s commercial real estate broker in connection with the lease for the Property. (Luskin Decl. ¶ 2; Devries Decl. ¶ 2.)

On December 19, 2024, Plaintiff filed a Complaint against Tenant and Guarantor (collectively, “Defendants”), asserting two causes of action: (1) breach of lease against Tenant and (2) breach of guaranty against Guarantor.

Plaintiff alleges that Tenant breached the Lease by vacating the Property on August 23, 2024, and that Plaintiff received the returned keys on September 3, 2024, more than two and a half years before the Lease’s February 28, 2027 expiration date. (Compl. ¶ 13.)

On May 1, 2026, Plaintiff filed a Motion for Summary Judgment, initially set for hearing on July 21, 2026, which was later continued. (Luskin Decl. ¶ 4.)

On or about June 9, 2026, Guarantor served a Deposition Subpoena for Personal Appearance and Production of Documents on Colliers, requiring designation of a Person Most Qualified (“PMQ”) and Requests for Production of Documents (“RPDs”) relating to the Property, some categories without any time limitation and others from February 1, 2022 to the present. (Luskin Decl. ¶ 2; Gonzalez Decl. ¶ 3, Ex. A.)

On June 18, 2026, counsel for Colliers and counsel for Guarantor met and conferred telephonically, and Colliers’ counsel followed up by email inviting Defendants to specifically identify what they were seeking. (Luskin Decl. ¶ 4.) On June 22, 2026, Colliers served written objections asserting, among other things, that the requests were overbroad, unduly burdensome, and vague; sought information available from parties to the litigation; and implicated confidential, proprietary, trade secret, and third-party information. (*Id.* at ¶ 5; Gonzalez Decl. ¶ 8, Ex. E.)

The parties met and conferred again, including by email correspondence and a telephonic meet and confer on June 26, 2026. (Gonzalez Decl. ¶ 9, Ex. F.) Guarantor proposed limiting RPD Nos. 1 and 2 and all PMQ deposition categories to the period from January 31, 2022 to the present. (Gonzalez Decl. ¶ 10; Luskin Decl. ¶ 6.)

Colliers thereafter collected potentially responsive documents from several custodians using basic search terms, imported the collection into Relativity, and after deduplication identified in excess of 15,000 potentially responsive documents. (Luskin Decl. ¶ 7.) A sampling review by Colliers’ counsel reflected communications regarding Colliers’ invoice to Plaintiff, 2022 inquiries regarding availability of the property for sale or lease, communications utilizing the property as a comparator for other deals, and materials Colliers considered confidential, proprietary, or trade secret in nature. (Luskin Decl. ¶ 8; Devries Decl. ¶¶ 3–6.) The parties continued to exchange communications regarding scope, search terms, and cost-sharing, but did not reach agreement. (Luskin

Decl. ¶¶ 9–10.) Colliers did not designate a PMQ for deposition or produce documents in response to the subpoena.

Guarantor moves to compel Colliers, Plaintiff's commercial leasing broker for the Property, to designate a PMQ for deposition and produce documents responsive to its June 9, 2026 subpoena. Guarantor argues that the discovery is directly relevant to Plaintiff's damages and Defendants' mitigation defenses, that Colliers has refused to produce any witness or documents despite identifying over 15,000 potentially responsive documents, that Guarantor substantially narrowed the subpoena during meet and confer, and that \$5,460 in sanctions is warranted under CCP §§ 1987.2 and 2025.480(j) for Colliers' unjustified noncompliance.

In opposition, Colliers argues the motion should be denied because the subpoena is untethered to the only asserted issue (post-August 2024 mitigation) and instead sweeps in four-plus years of pre-breach records; the information it seeks is duplicative of what is available through party discovery from Plaintiff or a targeted PMQ deposition; compliance would require review of more than 15,000 potentially responsive documents, many irrelevant, confidential, or trade secret protected; Guarantor refused reasonable compromises such as search terms, custodian limits, or cost-shifting; and Guarantor failed to file a required separate statement under CRC Rule 3.1345, warranting \$8,025 in sanctions against Guarantor under CCP §§ 2023.030 and 2025.410.

In reply, Guarantor argues Colliers' opposition rests on a fabricated narrative: Guarantor made a written concession narrowing RPD Nos. 1–2 and all eleven PMQ categories to a January 31, 2022–present window, and Colliers never countered, never designated a PMQ, and went silent for weeks before disclosing the “15,000 document” figure on July 16, 2026, with no search terms, no privilege log, and no motion for a protective order; the pre-surrender period is relevant beyond mitigation because it bears on whether Plaintiff had advance notice of, and accepted, Tenant's surrender; Colliers' undifferentiated, boilerplate objection letter was not a Code-compliant item-by-item response, so no separate statement was required under CRC Rule 3.1345(b)(1); and sanctions should issue against Colliers, not Guarantor.

Analysis

1. Legal Standard

Discovery is permitted as to any non-privileged matter relevant to the subject matter and reasonably calculated to lead to admissible evidence. (CCP § 2017.010.) On a failure to produce documents or designate a witness under a deposition subpoena, the propounding party may move to compel. (CCP § 2025.480.) The Court “shall limit” discovery that is unreasonably cumulative, obtainable from a more convenient source, or whose burden outweighs its likely benefit. (CCP § 2019.030(a).) On motion, the Court

may quash or modify a subpoena, or direct compliance on protective terms, “to protect the person from unreasonable or oppressive demands.” (CCP § 1987.1.)

Because a subpoena duces tecum reaches a non-party, it “must describe the documents to be produced with reasonable particularity,” and “[g]eneralized demands, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted.” (*Calcor Space Facility, Inc. v. Sup. Ct.* (1997) 53 Cal.App.4th 216, 218.) “[T]he court should attempt to structure discovery in a manner which is least burdensome” to the non-party and “the burden of discovery should be placed on [non-parties] only if [the parties] do not possess the material sought.” (*Id.* at 225.) The Court must “carefully weigh the cost, time, expense and disruption of normal business . . . against the probative value of the material which might be disclosed.” (*Id.* at 223.)

2. Motion to Compel Subpoena Duces Tecum

Guarantor’s deposition subpoena requires Colliers to designate a PMQ on eleven categories and produce documents responsive to thirteen requests concerning contracts with Plaintiff, listings, marketing, showings, and communications with prospective tenants and their agents. Guarantor contends that this information is relevant to Plaintiff’s claimed damages for reletting the Property and to its mitigation defenses. Colliers does not dispute the general relevance of some mitigation-related discovery but argues that the requests as drafted are overbroad, unduly burdensome, and extend well beyond the relevant time period.

a. Agreed Narrowing of Temporal Scope

During the meet and confer, Guarantor agreed to narrow RPD Nos. 1 and 2 and all eleven PMQ categories to the period from January 31, 2022 to the present. This temporal limitation ties the discovery to the inception of the Lease at issue. Colliers responds that the narrowing was immaterial because the remaining requests already began February 1, 2022. The parties did not reach agreement on any further scope, search terms, or cost-sharing. The Court adopts this agreed limitation as the operative temporal scope for the PMQ deposition and for RPD Nos. 1 and 2. RPD Nos. 11–13, as served, are already limited to February 1, 2022 to the present.

b. Burden and Confidentiality

Colliers has identified legitimate burden and confidentiality concerns, including the identification of over 15,000 potentially responsive documents (Luskin Decl. ¶ 7) and the presence of leasing strategies, prospective tenant lists, commission data, and other proprietary information within Colliers’ brokerage files (Devries Decl. ¶ 3). Those concerns are real but are properly addressed through targeted search terms and a stipulated protective order rather than outright refusal to comply, and are addressed in the disposition below.

c. Request-Specific Analysis

RPD Nos. 1–2 seek all documents relating to any contracts and agreements between Colliers and Plaintiff concerning the Property. Colliers argues that the requests are overbroad and duplicative of information obtainable from Plaintiff and sweep in “documents beyond the agreements themselves . . . years of communications, invoices, drafts, negotiations, internal discussions, payment records, and other items simply referencing the Subject Property.” (Colliers’ Opp. 9:19–22.) While the requests as drafted are overbroad, the operative written agreements themselves are relevant and appropriately obtained from Colliers as the contracting broker. RPD Nos. 1–2 is therefore narrowed to require production of the operative written agreements between Colliers and Plaintiff governing Colliers’ brokerage services concerning the Property from January 31, 2022 to the present, including executed listing agreements, commission or fee agreements, and any amendments, extensions, or modifications thereto. The requests do not require production of ancillary communications, drafts, negotiation records, invoices, or internal discussions, which are duplicative of information available from Plaintiff. To the extent the parties disagree whether a specific document falls within this narrowed scope, they shall meet and confer in good faith within fourteen (14) days.

RPD Nos. 3–8 seek all communications between Colliers and Plaintiff (No. 3), all communications between Colliers and its employees or agents relating to the Property (No. 4), and all documents and communications relating to the listing or showing of the Property (Nos. 5–8), from February 1, 2022 to the present. Colliers argues that these requests lack reasonable particularity, do not identify specific transactions, communications, or categories tied to disputed issues, and would require review of thousands of communications and internal documents, many containing confidential and proprietary information. Colliers further notes that Guarantor has not identified specific categories of information sought or proposed targeted search terms despite repeated invitations to do so. (Luskin Decl. ¶¶ 9–10.) These arguments have merit. Unlike the operative agreements at issue in RPD Nos. 1–2, the sweeping communications and marketing materials sought by RPD Nos. 3–8 are not tied to any identified transaction or issue in dispute, and as drafted, their burden is not proportional to the needs of the case. These requests should therefore be **QUASHED** without prejudice to Guarantor serving properly tailored requests that identify specific transactions, time periods, or categories of communications relevant to identified issues in dispute.

RPD Nos. 9–10 seek all documents relating to contracts and agreements entered into by Colliers concerning the Property from February 1, 2022 to the present. Colliers argues that these requests are overbroad, unduly burdensome, and not limited to any particular contract, transaction, counterparty, or disputed issue, and would require Colliers to identify and produce every agreement it entered into concerning the Property over more than four years without any showing of relevance. These arguments have merit. As currently drafted, RPD Nos. 9–10 reach all third-party agreements Colliers may have entered into concerning the Property, without regard to counterparty, transaction, or connection to any issue in dispute. These requests are **QUASHED**

without prejudice to Guarantor serving properly tailored requests identifying specific agreements or types of agreements relevant to identified issues in dispute.

RPD Nos. 11–13 seek documents and communications relating to showing of the Property and communications with prospective tenants and their agents, from February 1, 2022 to the present. Colliers does not dispute that these requests come closest to the asserted mitigation issue, but argues that their temporal scope reaches approximately two and one-half years before Tenant vacated the Property in August 2024, sweeping in pre-surrender records unrelated to any mitigation obligation. Guarantor responds that pre-surrender showing and prospective tenant records are relevant beyond mitigation because they bear on whether Plaintiff had advance notice of, and accepted, Tenant’s surrender. This provides an independent basis for relevance beyond mitigation. Unlike the sweeping communications and third-party agreements at issue in RPD Nos. 3–10, RPD Nos. 11–13 are tied to identifiable, disputed issues and the information sought is uniquely in Colliers’ possession as the leasing broker. Subject to reasonable targeted search terms to be agreed upon by the parties and a stipulated protective order for confidential, proprietary, and trade secret information, these requests are relevant and proportional to the needs of the case. Compliance with RPD Nos. 11–13 is **DIRECTED**, for the period as served (from February 1, 2022 to the present), subject to the protective terms set forth below.

PMQ Deposition. Guarantor’s subpoena notices eleven PMQ deposition categories concerning the leasing, marketing, showing, and prospective tenant history of the Property, as narrowed by Guarantor to January 31, 2022 to the present. Colliers argues that any PMQ deposition should be limited to post-surrender mitigation and objects to the pre-surrender scope. As discussed above, however, pre-surrender records bear on Plaintiff’s mitigation efforts and on whether Plaintiff had advance notice of, and accepted, Tenant’s surrender, which is a legitimate, separate basis for relevance. Subject to a stipulated protective order for confidential, proprietary, and trade secret information, the PMQ deposition as narrowed is relevant and proportional to the needs of the case. Compliance with the PMQ deposition notice is **DIRECTED**, with Colliers to designate and produce its PMQ consistent with this ruling.

d. Separate Statement

Colliers argues that Guarantor failed to file a separate statement as required by CRC Rule 3.1345(a). Guarantor responds that rule 3.1345(b)(1) excuses a separate statement when no response has been provided to the discovery requests, and that Colliers’ objection letter objected to the subpoena as a whole rather than to any individual request. Colliers’ objection letter was general rather than item-specific, and the Court has sufficient information from the parties’ briefs to rule on the motion on the merits. The Court therefore exercises its discretion to address the motion on the merits.

e. Sanctions

CCP § 2025.480(j) provides that the Court “shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel,” absent substantial justification or other circumstances rendering sanctions

unjust. Here, both sides acted with substantial justification. Guarantor had a legitimate basis to seek discovery from Plaintiff's leasing broker concerning mitigation and related issues, even though the subpoena as served was overbroad in several respects. Colliers, in turn, raised legitimate concerns about scope, burden, and confidentiality, and engaged in meet and confer, even though it could have been more specific in quantifying burden and more proactive in proposing tailored alternatives. Neither party's conduct warrants sanctions. Thus, the Court **DENIES** both Guarantor's request for \$5,460.00 and Colliers' cross-request for \$8,025.00.

Ruling: GRANT IN PART and DENY IN PART Defendant Noor Group, LLC's Motion to Compel Compliance with Subpoena Duces Tecum as follows:

- **PMQ Deposition. GRANT** limited to January 31, 2022 to the present, subject to protective order.
- **RPD Nos. 1–2. GRANT as modified.** Colliers shall produce the operative written agreements between Colliers and Plaintiff governing Colliers' brokerage services concerning the Property from January 31, 2022 to the present, including executed listing agreements, commission or fee agreements, and any amendments, extensions, or modifications thereto, within ____ days. Ancillary communications, drafts, negotiation records, and invoices duplicative of information available from Plaintiff are excluded.
- **RPD Nos. 3–10. QUASH** without prejudice to Guarantor serving properly tailored requests identifying specific transactions, agreements, or categories tied to identified issues in dispute.
- **RPD Nos. 11–13. GRANT** for the period as served (February 1, 2022 to the present), subject to search terms and protective order.
- **Sanctions. DENIED** both sides' requests for monetary sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500269	FREEMAN vs HERN	MOTION TO COMPEL

Tentative Ruling:

The unopposed motion to compel a response to the request for production is granted. Defendant is to provide a verified response, without objection within 20 days. Sanctions are awarded in the amount of \$510.